

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

HMM CO. LTD, *Respondent*

DOCKET NO. 22-20

Served: January 4, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ENTERING CONFIDENTIALITY STIPULATION AND PROTECTIVE ORDER

On December 15, 2022, the parties filed a joint motion requesting entry of a confidentiality stipulation and protective order. The parties separately filed a confidentiality stipulation and protective order on the same date ("Confidentiality Stipulation"). The parties indicated that they have "STIPULATED AND AGREED, in good faith...that this Confidentiality Stipulation and Proposed Protective Order shall be applicable to this Proceeding...." Confidentiality Stipulation at 1.

The Initial Order in this proceeding states that: "The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission." Initial Order at 4.

The Confidentiality Stipulation is reasonable however, the parties should note that after the initial decision is issued, the undersigned has no authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties. Paragraphs 5(e), 8, 14, 15 and 23 of the Confidentiality Stipulation, rather than indicating "the ALJ" or "ALJ Crovella" should indicate "the presiding officer" in the event the case is transferred to another administrative law judge, or a challenge of confidential designations arises after the initial decision issues. Paragraph 25 states that "[t]he ALJ shall retain jurisdiction over the Parties, even after termination of this Proceeding...." As stated above, the undersigned has no authority to retain jurisdiction after the issuance of the initial decision. Accordingly, paragraphs 5(e), 8, 14, 15 and 23 are revised to replace "the ALJ" wherever it appears in those paragraphs with "the presiding officer." Paragraph 25 is stricken from the confidentiality stipulation.

The parties have established good cause to enter the confidentiality agreement and protective order. Accordingly, the joint motion is **GRANTED**, and it is hereby **ORDERED** that the confidentiality stipulation and protective order shall be entered as an order in this proceeding as revised by the above.



Linda S. Harris Crovella
Administrative Law Judge